

1.

CASE #	CASE NAME	HEARING NAME
CVME2511189	MALONE VS TEMECULA VALLEY HOSPITAL, INC.	MOTION TO COMPEL DEPOSITION OF TEMECULA VALLEY HOSPITAL, INC.'S PERSON MOST QUALIFIED RE DEPARTMENT OF PUBLIC HEALTH INVESTIGATION

Tentative Ruling:

The motion is denied because the preconditions for bringing a motion under Code of Civil Procedure section 2025.450, subdivision (a), were not met to compel the deponent's appearance at deposition.

Subdivision (a) of section 2025.450 provides in part: "If, after service of a deposition notice, a party to the action ... or a person designated by an organization that is a party ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document ..., the party giving notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection for any document ... described in the deposition notice." (Code Civ. Proc., §2025.450(a), italics added.)

Plaintiffs provide no evidence showing a deposition actually took place for which the deponent failed to appear for examination, to proceed with, or to produce documents as requested in Plaintiffs' deposition notice to warrant an order compelling his or her attendance. (Code Civ. Proc., §2025.450(a).)

2.

CASE #	CASE NAME	HEARING NAME
CVME2511189	MALONE VS TEMECULA VALLEY HOSPITAL, INC.	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET THREE

Tentative Ruling:

The motion is denied.

Plaintiffs seek an order compelling Defendant Hospital to provide further responses to their Request for Production of Documents, Set Three ("RFP") Nos. 65, 66, 71-74, and 78.

The motion is as to RFP Nos. 65, 66, and 78 because the Hospital has properly objected. Although Plaintiffs, as the propounding party, have made a fact-specific showing of good cause in seeking the incident reports as requested under RFP Nos. 65, 66, and 78, and the burden of justifying the objections falls on the Hospital as the